

TENTATIVE RULING(S) FOR June 29, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2401241

FIRSTKEY MASTER FUNDING VS BECSKE

TENTATIVE RULING(S):

On February 14, 2024, Firstkey Master Funding 2021-A Collateral Trust, U.S. Bank Trust National Association as Collateral Trust Trustee filed a complaint against George Becske; Deutsche Bank National Trust Company, as Trustee of the IndyMac Indx Mortgage Trust 2007-AR21P Under the Pooling and Servicing Agreement Dated October 1, 2007, its Successors and/or Assigns; and Cach, LLC, alleging: (1) cancellation of instrument; and (2) declaratory relief. Plaintiff seeks the cancellation of certain instruments encumbering the property located at 13452 Corsican Court in Chino, California, including a substitution of trustee and a full reconveyance.

On April 10, 2025, a default was entered against all Defendants, and a prove-up hearing is currently set for July 17, 2026.

Now before the Court is Defendant Becske's "Motion to Stay Proceedings/Subject Matter Jurisdiction" filed on his behalf by non-attorney Adriana Estevez. Plaintiff filed a late opposition on June 22, 2026 (due June 16, 2026), stating it was not served with the motion. Becske does not reply (due June 22, 2026).

ANALYSIS

Although Plaintiff's Opposition is late, it is unnecessary because there is no legal basis to grant the motion.

First, due to his default, Becske has no right to participate in this action, including the prove-up hearing, until his default is set aside. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) Becske's motion does not seek to set aside his default and Becske lacks the ability to bring this motion or seek the relief requested until his default is set aside.

Becske's motion is also legally improper because as a non-attorney, Estevez cannot represent Becske and cannot file the motion on Becske's behalf.

Estevez admits she is not a member of the State Bar, but purports to represent Becske in the capacity of a "private attorney general." Estevez argues she can represent Becske because she submitted a "Notice of Entry of Appearance" as a party representative on behalf of an individual named Ruben De Jesus before the U.S. Department of Justice Immigration Court. However, California law precludes Estevez from representing Becske in a California judicial proceeding. Since the passage of the State Bar Act in 1927, it has been settled that persons may represent their own interest but may not practice law for another unless they are active members of the State Bar. (*Drake v. Superior Court* (1994) 21 Cal.App.4th 1826, 1830 (*Drake*).) Thus, in general, "[a] person who is not an attorney authorized to practice law in this state cannot represent anyone other than himself." (*Roddis v. All-Coverage Ins. Exchange Auto. & Fire* (1967) 250 Cal.App.2d 304, 311.) Under California Business and Professions Code section 6125, "[n]o person shall practice law in California unless the person is an active member of the State Bar."

In addition, it is a misdemeanor for any person to hold himself or herself out as practicing or entitled to practice law or to otherwise practice law who is not an active member of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so. (Bus. & Professions Code, § 6126, subd. (a).)

By filing the motion on Becske's behalf, Estevez has engaged in the unlicensed practice of law. (*State Bar of California v. Superior Court* (1929) 207 Cal. 323, 334-335; *People v. Starski* (2017) 7 Cal.App.5th 215, 229-230 [The practice of law includes giving legal advice and preparing legal instruments in the course of litigation.])

Estevez's argument that she may represent Becske here because she was purportedly allowed to represent an individual before a federal immigration court is without merit. California law governs who may practice law in California. Prohibiting the unlicensed practice of law is within the police power of the state and designed to ensure competence of those performing legal services. (*Drake, supra*, 21 Cal.App.4th at p. 1830, citing *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 969.)

Given that Becske's motion is improper due to his default and Estevez's inability to represent him, the motion is DENIED.